

File No.: EXP202309502

RESOLUTION FOR ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: The Spanish Agency for Data Protection became aware through a complaint filed with registration number REGAGE23e00036326867 and REGAGE23e00043167280, that the Autonomous Community of the Region of Murcia, through the Ministry of Education, Vocational Training, and Employment, has signed a Collaboration Agreement with a commercial company for the use and dissemination of the platform www.mihuelladigital.es, with the aim of informing and raising awareness about digital privacy and data protection, in order to combat and prevent situations of cyberbullying in publicly funded centers.

The aforementioned Agreement contemplates the processing of different types of data and various interested parties by the company in charge, without providing information on how and under what conditions access and subsequent processing of the personal data of students, especially minors, will occur.

According to the reported facts, in accordance with the cited Agreement, the commercial company in charge of processing will handle the following types of personal data: name and surname, ID number, email address, family book, images for facial recognition service, user accounts, and internet profiles, as well as "other documentation" not detailed, corresponding to parents, students, and the management team of the educational centers. However, the Agreement does not indicate how the commercial company will be allowed to access the personal data of students, nor what the subsequent processing will be.

In the Register of Processing Activities of the educational centers and on the general website of the Ministry, there is no record of any processing that could frame this activity, nor, in particular, any activity that contemplates the processing of biometric personal data of students, also lacking references to the security measures applicable by the Ministry to protect the fundamental right to data protection of the students of the schools that will be part of this initiative.

SECOND: Considering the relevance of the information, it was necessary for this Agency to gain an in-depth understanding of the described facts and the processing carried out in order to determine the consequences that could arise for the rights and freedoms of individuals.

The need to assess the implications regarding personal data protection required the opening of an investigation to verify these aspects and, if applicable, the proper observance of the regulations concerning certain facts that could violate data protection legislation.

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For all these reasons, on July 7, 2023, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate of Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD) to investigate the MINISTRY OF EDUCATION and YOUFORGET.ME, S.L. with NIF B42751842, having knowledge of the following aspects:

The Official Bulletin of the Region of Murcia on Saturday, May 27, 2023, publishes the collaboration agreement between the Autonomous Community of the Region of Murcia, through the Ministry of Education, Vocational Training, and Employment, and the commercial company Youforget.me S.L., for the use and dissemination of the platform www.mihuelladigital.es, with the aim of informing and raising

awareness about digital privacy and data protection in order to combat and prevent situations of cyberbullying in publicly funded centers.

In the diligence of August 2, 2023, the consultation to the Register of Processing Activities of the Region of Murcia is recorded, in which no record related to the aforementioned Agreement signed by the Ministry of Education, nor with the words "mihuelladigital" or "youforget" has been found.

On September 26, 2023, the Ministry of Education, Vocational Training, and Employment of the Autonomous Community of the Region of Murcia responds to the request of August 4, 2023, from this Agency:

The objective of the agreement with the commercial company Youforget.me, S.L. is [...] "to inform and raise awareness about digital privacy and data protection in order to combat and prevent situations of cyberbullying" [...].

Attached is the report of September 20, 2023, from the General Subdirectorate of Innovation and Attention to Diversity in response to the request of the AEPD:

"1. Objective of the agreement.

The objectives intended to be achieved with this agreement are the following:

1. To promote the initiative of the Ministry of Education, Vocational Training, and Employment to address the new challenges posed by the current digital age in the educational community, as well as the current regulations, with concern and proactivity, relying on the team and technology of Youforget.me / mihuelladigital for this purpose.
2. To select a set of 100 pilot educational centers, training the management teams and the coordinator of well-being and protection in knowledge related to the digital footprint, promoting awareness, as well as information related to both digital privacy and data protection.

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of data. Likewise, providing access to the digital platform (www.mihuelladigital.es) and the method of Youforget.me S.L.

3. To raise awareness within the educational community about the importance of information published or shared via the internet.

4. To prevent situations of cyberbullying in educational centers, ensuring safe and comfortable environments for students."

[...] The commercial company Youforget.me S.L. is responsible for processing the personal data necessary to provide the services of the Youforget.me platform for processing requests for data protection rights, consisting of the collection, structuring, storage, registration, and communication of personal data. The purpose of the processing described in the previous paragraph is to manage administrative requests related to data protection rights handled by professional offices and to obtain the digital footprint of students from pilot centers, processing such data protection requests as stipulated in the General Data Protection Regulation (GDPR) [...] the types of personal data processed are: name and surname, ID number, email address, family book, images for facial recognition service, user accounts, and internet profiles, as well as other personal documentation containing the aforementioned personal data."

"3. Categories of data subjects.

According to clause nine of the agreement, it is established that the category of data subjects will consist of parents, students, and the management team or the person to whom it is delegated."

[...] "The personal data included in this Agreement (data of the parties involved) will be processed by the other party for the purpose of managing the collaborative relationship, with the basis of the processing being the fulfillment of said relationship, and will be retained for as long as it exists and even afterwards, until any potential liabilities arising from it expire." [...]:

[...] a) The respective data controllers of personal data are the signing parties, and the contact details of the data protection officer (DPO) or the privacy officer for each of them are as follows:

1. Data of the data protection officer of the commercial company Youforget.me S.L.: Email:

dpd@youforget.me; Postal address: Av. Pablo Picasso nº 74, 41.940, Tomares, Sevilla.

2. Data of the data protection officer or, if applicable, the privacy officer of the Ministry of Education:
Email: ***EMAIL.1 Postal address: Avda. de la Fama nº 15, 30.003, Murcia.

b) The personal data of students will not be transferred to third parties, nor will they be subject to automated decisions. [...]

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[...] “The commercial company Youforget.me S.L. is responsible for processing the personal data necessary to provide the services of the Youforget.me platform for processing requests for data protection rights, consisting of the collection, structuring, storage, registration, and communication of personal data. The purpose of the processing described in the previous paragraph consists of managing administrative requests related to data protection rights handled by professional offices and obtaining the digital footprint of students from pilot centers, [...] the types of personal data processed are: name and surname, ID number, email address, family book, images for facial recognition service, user accounts, and internet profiles, as well as other personal documentation containing the aforementioned personal data. Likewise, it is established that the category of data subjects will consist of parents, students, and the management team or the person to whom it is delegated. [...]”

[...] “There are no registered centers because this phase of implementation has not been reached.”

[...] No information has been provided regarding the participants concerning Article 13 of the GDPR, because no personal data has been obtained from any data subject, as the implementation of the agreement has not been initiated and there are no participants.

[...] “The agreement signed between the Ministry of Education, Vocational Training, and Employment of the Region of Murcia and the commercial company “Youforget.me, S.L.” is excluded from the scope of application of the contract,” as it provides for collaboration without cost on the part of this Ministry.

[...] This lack of onerousness observed in the referenced agreement, which does not entail expenditure for the Administration, excludes it from the contractual scope.

[...] There are no records of any student or any parent, mother, or legal guardian at Youforget.me S.L. as no actions have been carried out. The only actions that have occurred have been the signing of the agreement and an institutional demonstration.

[...] On June 29, 2023, the Data Protection Delegate for Educational Centers sent a report regarding the agreement between the Autonomous Community of the Region of Murcia, through the Ministry of Education, Vocational Training, and Employment, and the commercial company Youforget.me S.L., for the use and dissemination of the platform www.mihuelladigital.es, with the aim of informing and raising awareness about digital privacy and data protection in order to combat and prevent situations of cyberbullying in publicly funded centers from the perspective of data protection.” Attached below:

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“REPORT FROM THE PERSPECTIVE OF DATA PROTECTION OF THE COLLABORATION AGREEMENT BETWEEN THE AUTONOMOUS COMMUNITY OF THE REGION OF MURCIA, THROUGH THE DEPARTMENT OF EDUCATION, VOCATIONAL TRAINING AND EMPLOYMENT, AND THE COMMERCIAL COMPANY YOUFORGET.ME S.L., FOR THE USE AND DISSEMINATION OF THE PLATFORM WWW.MIHUELLADIGITAL.ES, WITH THE OBJECTIVE OF INFORMING AND RAISING AWARENESS ABOUT DIGITAL PRIVACY AND DATA PROTECTION IN ORDER TO FIGHT AND PREVENT CYBERBULLYING SITUATIONS IN CENTERS SUPPORTED BY PUBLIC FUNDS” from the Data Protection Officer for Educational Centers of the Department of Education of the Autonomous Community of the Region of Murcia, Avenida de la Fama, 15, Pla. 0, 30006 MURCIA,

dated June 28, 2023.

"[...] The General Directorate of Attention to Diversity, Innovation and Vocational Training has not provided, prior to the start of the procedure, the required activity record of processing, which is mandatory when there is data processing, so the Department of Education, Vocational Training and Employment could be charged with a violation of Article 30 of the GDPR, included within the typology framed in Article 83.4, paragraph a) of the GDPR. This violation is classified as a serious offense in accordance with Article 73, paragraph n) of the LOPDGDD."

"It is noted that the mandatory DPIA has not been provided, prior to the start of the procedure, when the processing involves the use of biometric data, so the Department of Education, Vocational Training and Employment could be charged with a violation of Article 35 of the GDPR, included within the typology framed in Article 83.4, paragraph a) of the GDPR. This violation is classified as a serious offense in accordance with Article 73, paragraph t) of the LOPDGDD."

"Therefore, the processing of biometric data under Article 9.2.g) requires that it be provided for in a European or national law, and in the latter case, such law must, according to the cited constitutional doctrine and what is provided in Article 9.2 of the LOPDGDD, have the rank of law. This law must also specify the essential public interest that justifies the restriction of the right to personal data protection and under what circumstances it can be limited, establishing precise rules that make the imposition of such limitation and its consequences foreseeable for the interested party, without the generic invocation of a public interest being sufficient for these purposes."

"Such provisions, and considering what has been raised in this case, are deemed insufficient to allow the use of facial recognition techniques for the purpose of constructing the digital footprint of students, as they do not meet the previously mentioned requirements, making it necessary for a law to be approved that specifically justifies to what extent and under what circumstances the identification of students through the use of biometrics would respond to an essential public interest."

"Therefore, there is currently, as indicated, no legal norm that enables such processing of biometric data under Article 9.2.g) of the GDPR, as neither Article 2 nor Article 111 bis of Organic Law 2/2006, of May 3, on Education, cited meet the legally and jurisprudentially established requirements."

"Based on these criteria, we consider that the possibility of obtaining free consent from students that would allow the use of facial recognition techniques for the purpose of processing their biometric data for the use of the "My Digital Footprint" platform would require that they be offered the possibility of using said platform in a comparable situation where the processing of their facial recognition would not be necessary, that is, by offering other alternatives that do not require the processing of their biometric data; otherwise, the consent could not be considered freely given. It is therefore the responsibility of the Department of Education, Vocational Training and Employment, by virtue of its competencies in the field of education and as the responsible party for the intended processing, to determine whether, in the implementation of the agreement, therefore, of the "My Digital Footprint" platform, equality is ensured between students who consent to the processing of their biometric data and those who do not. Only in this way could consent legitimize such processing."

It concludes: "... once the reasons presented have been analyzed, we consider that the necessity of the proposed processing of personal data in the collaboration agreement between the Autonomous Community of the Region of Murcia, through the Department of Education, Vocational Training and Employment, and the Commercial Company Youforget.me S.L., for the use and dissemination of the platform www.mihuelladigital.es, with the objective of informing and raising awareness about digital privacy and data protection in order to fight and prevent cyberbullying situations in centers supported by public funds, is not justified, as it represents a possible breach of the current legislation on the protection of personal data, ..."

The response continues: [...] "No impact assessment has been conducted."

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Concludes:

“1st.- No personal data of any student or any parent, mother, or legal guardian has been transmitted to Youforget.me S.L. up to the date of this report.

2nd.- The transmission of data of any student, parent, mother, or legal guardian will always require the express authorization of the parents, mothers, or legal guardians.

3rd.- The processing of requests will be carried out under the General Data Protection Regulation, [...] The personal data of students will not be transferred to third parties, nor will they be subject to automated decisions.

4th.- The actions carried out up to the date of this report only include the signing of the agreement and institutional demonstration. There are no centers participating, nor have any data of students, parents, or guardians been transmitted.

We await the response to the information request made, in order to begin, if applicable, with the actions related to the object of the collaboration agreement with Youforget.me S.L. Meanwhile, no actions concerning the object of the agreement will be carried out.”

As the DPD emphasizes, the responsible party (the Ministry of Education) has not registered this activity in the Registry of Processing Activities. The diligence of November 16, 2023, notes that the 2023/2024 school year in the Region of Murcia begins with more than 300,000 students and 27,000 teachers, therefore the responsible party is indeed obliged to carry out the Registry of Processing Activities.

The Ministry of Education acknowledges in its response of September 26, 2023, that it has not conducted an Impact Assessment for data protection, as also noted by the DPD in its report of June 28, 2023.

In the response from Youforget.me dated November 30, 2023, to the request of November 17, 2023, from the Agency, it states:

“2.- Data collected:

It should be noted that one of the reasons why this agreement was not executed is that the roles of data processor, and not of responsible or co-responsible for the mentioned processing, were not delineated, given that we estimated that this condition corresponded to the Ministry of Education, Vocational Training, and Employment of the Autonomous Community of the Region of Murcia. That said, and considering that the agreement has not been executed, we present the data that would have been subject to processing during the execution of said agreement.”

[...] The information provided by Youforget.me, S.L. is as follows:

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1.- Identification and contact details:

Youforget.me, S.L. with address at Avenida Pablo Picasso 74, Tomares, 41940 Sevilla

Contact: dpd@youforget.me You can use this email to request any additional information or to present us with questions and issues.

2.- Purpose of the processing:

Below, we break down the different processes carried out on the well-being coordinator platform, their purpose, and the category of data subject to processing:

a) Management of the platform by the educational center.

To access the platform, it will request contact and access data related to the personnel who will use the technological platform on behalf of the Educational Center, which may be the Center's Management or the Well-being Coordinator. This data is limited to: name, surname, phone number, and email.

The legitimacy is based on the collaboration agreement signed by the Ministry of Education, Vocational Training, and Employment of the Autonomous Community of the Region of Murcia, in which 100 educational centers will be selected for the pilot use of the platform.

b) Preparation of files for AEPD – Priority channel in case of detected violence or digital harassment by

the center.

If the Educational Center detects a case of violence or digital harassment, it has the duty to report it to the AEPD through the priority channel and/or to the authorities if it constitutes a crime. The well-being coordinator platform helps you prepare such files. The legitimacy is the legitimate interest in helping students as established by Organic Law 8/2021, of June 4, for the comprehensive protection of children and adolescents against violence.

The data to be processed are:

- Identification data of students and guardians (which the center already possesses for its educational work): name and surname, date of birth, full address, ID number, phone number, and email.
- If they choose to obtain digital evidence through the platform, URLs where the violent or harassing content is located for the preparation of the file/report. This information is voluntary and only if the interested party wants digital evidence.
- Supporting documentation for the report: images provided by students or the educational center as supporting documentation for the file/report, if any. This information is voluntary and only if the interested party wants to provide it as supporting documentation.

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a) Data Protection Rights Form.

This functionality is for the educational center to request, on behalf of the students and with their consent, the data protection rights that affect those students.

The platform prepares a rights request form, according to the GDPR and the LOPDGDD, in the name of the educational center (which represents the student) and sends it to the corresponding data controller. In 3 clicks and 5 minutes, it facilitates the exercise of data protection rights for the interested parties.

For this service, the platform requests the following data:

- Identification data of students and guardians (in the case of students under 14 years old).
- URLs of information they wish to document through digital evidence of a publication, to exercise the corresponding data protection right. This information is voluntary and only if the interested party wants digital evidence.

The legitimacy is based on the consent obtained through representation, which is also granted digitally by the platform.

d) Student's Digital Footprint.

The purpose of processing the digital footprint is to provide you with the digital footprint service, in which you can find a report containing all your personal data and information related to your privacy (such as security breaches to which your accounts and passwords have been exposed), which is public and therefore available to any person, entity, and artificial intelligence.

To carry out this processing, the Educational Center collects your consent to execute the digital footprint report on your behalf, which is the basis of legitimacy. The educational center will not be able to view the results of the report unless you authorize it to do so; in this way, we want to safeguard your interests and ensure that only you determine whether the content of the report is for you alone or not. If you are under 14 years old, you will not be able to use the digital footprint service, and your guardian must request it on your behalf.

[...] "The mechanism by which consent will be collected consists of when the report is requested by the coordinator, an email is sent to the guardian or to the student if they are over 14 years old (the guardian must be marked as mandatory to provide consent for obtaining the report) with a link to access a webpage and provide consent for that request."

The content that the webpage would contain is informed consent for the guardians of minors, the description of the digital footprint request process, and the security and authentication systems provided.

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Regarding the servers where personal data is stored or is planned to be stored, it responds:

“The solution is hosted on a Windows application server in the Amazon cloud (eu-west-1, Ireland), and it is currently in the process of migrating to the Azure cloud in the Netherlands.”

Regarding compliance with the National Security Scheme:

“Since the company currently does not maintain contractual relationships with the Public Administration nor was it required in the Agreement as guarantees of the processing assignment, it has not been considered an indispensable requirement. As a preliminary step to the National Security Scheme, Youforget.me has been certified by AENOR in ISO 27001.

In the case of potential future agreements with the Public Administration, Youforget.me will analyze compliance with the National Security Scheme.”

In the document “Annex_3_Coordinator_of_Wellbeing_Risk_Analysis,” it states:

“Purpose of the platform

The purpose of this platform is to facilitate, expedite, and provide the necessary support to manage and document cases of exercising data protection rights, as well as cases of digital violence or harassment that wish to be reported to the AEPD via a priority channel.

Who does the wellbeing coordinator platform help?

The platform is intended for educational centers and wellbeing and protection coordinators. However, it also helps all minors from those educational centers during their use, in addition to promoting awareness of the digital environment surrounding them.

Why have we designed this tool?

Given the existing difficulty of connecting with the Public Administration, this tool allows schools and their wellbeing coordinators to easily comply with their legal obligations, assisting them and providing everything necessary for the creation of files for the AEPD or forms for the exercise of rights.

[...] Treatments performed

[...] 6. Enrollment of students: Students are enrolled just like other users. Data: first and last name, date of birth, ID number and validity date, facial image, photo of the ID (front), full address, email, and phone number. The usernames of the social networks provided for the digital footprint (Instagram, Tiktok, Discord, Vk, Steam, Foursquare, Linkedin, Telegram, Twitter, Google email, keywords, and excluded words) are also stored.

6.a. Of all the data, the following are mandatory: First name and last name, date of birth, ID number, image, full address, phone number, and email.

6.b. Sensitive data is blurred just like point 1.

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6.c. If the minor does not have an ID and is under 14 years old, the guardian/parent must sign an authorization for the service to be carried out.

6.d. In the relationship between the student and the guardian, there are various options:

- Marking the authorization for fingerprinting as mandatory: This means that before taking the student's fingerprint, the guardian must authorize it.
- Marking the authorization to exercise rights as mandatory: This means that every time a right is to be requested or exercised on behalf of the student, the guardian must authorize it and be informed.
- Permission to view the fingerprint report: In cases where the student does not allow the report to be viewed or where the coordinator wants the guardian to see their child's report, for example. This permission is decided by the guardian.

7. Fingerprint report: Within the report prepared for the fingerprint, there may be a situation where a

right is to be exercised or a case is to be notified to the AEPD.

8. Notification process request: A unique file is created that is generated through a series of questions and answers answered by the coordinator.

9. Signature of documentation by the coordinator with an advanced signature. When they wish to sign the requested document for notification to the AEPD, a code will be sent to the saved phone number, with which they will confirm the signature.

It states that given that: "Since the 2022-2023 school year has already ended and the project has not been executed, and since its expiration is April 2024, in the event that it is executed, an extension or the signing of a new agreement would be required, something that as of today neither exists nor is contemplated, it is necessary to clarify that there are no negotiations planned by either party in one sense or another and the present project is canceled."

Attached is the communication of registration of the DPD of YOUFORGET.ME SL with the AEPD, dated January 11, 2022.

The Data Protection Officer of YOUFORGET.ME SL, who signs the response letter, includes the following recommendation:

"The recommendations of the DPD have focused on not proceeding to carry out any type of processing regarding the possible facial recognition of the interested parties, as there are much less invasive methods for privacy, such as validation by the Coordinator of the educational center or the person designated by that center regarding the corresponding identification in a manual manner or an equivalent mechanism dictated by the instructions of the Ministry of Education, Vocational Training, and Employment of the Autonomous Community of the Region of Murcia."

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On November 13, 2024, a request was made to the Ministry of Education, asking whether any data processing actions had been carried out within the framework of the collaboration agreement with the commercial company Youforget.me S.L. for the use and dissemination of the platform

www.mihuelladigital.es with the aim of informing and raising awareness about digital privacy and data protection in order to combat and prevent situations of cyberbullying, as indicated in the document submitted by that Ministry to the Data Protection Agency on September 26, 2023.

On November 26, 2024, the Ministry of Education responded to the previous request indicating that "no data processing actions have been carried out since the agreement was deemed extinguished without coming into force."

LEGAL GROUNDS

I

Competence

According to the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Presidency of the Spanish Data Protection Agency is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

On May 27, 2023, the Resolution of May 15, 2023, of the General Secretary of the Ministry of Education, Vocational Training, and Employment, was published in the Official Bulletin of the Region of Murcia No. 121, which provided for the publication in the aforementioned Official Bulletin of the

collaboration agreement between the Autonomous Community of the Region of Murcia, through the Ministry of Education, Vocational Training, and Employment, and the Commercial Company Youforget.me S.L., for the use and dissemination of the platform www.mihuelladigital.es, with the aim of informing and raising awareness about digital privacy and data protection, in order to combat and prevent situations of cyberbullying in publicly funded centers.

This publication included as the ninth clause of the agreement a section regarding the protection and processing of data.

In section c of this ninth clause, the following paragraphs were included:

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"The commercial company Youforget.me S.L. is responsible for the processing of personal data necessary to provide the services of the Youforget.me platform for processing requests for data protection rights, which consists of the collection, structuring, storage, registration, and communication of personal data.

The purpose of the processing described in the previous paragraph is to manage administrative requests related to data protection rights handled by professional offices and to obtain the digital footprint of students from the pilot centers, processing such data protection requests in accordance with the provisions of the General Data Protection Regulation (GDPR) and the Organic Law on Data Protection and Guarantee of Digital Rights (LOPDGDD).

In order to comply with the content of Article 28.3 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data and the free movement of such data, the types of personal data processed are as follows: name and surname, ID number, email address, family book, images for facial recognition service, user accounts, and internet profiles, as well as other personal documentation containing the aforementioned personal data. Likewise, it is established that the category of data subjects will consist of parents, students, and the management team or the person to whom the responsibility is delegated."

In accordance with the provisions of Article 55 of Regulation (EU) 2016/679, of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data and the free movement of such data (hereinafter, GDPR), the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including enforcing the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as exercising the powers attributed to it by Article 58.

In this same sense, it is appropriate to cite Article 47 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), according to which it is the responsibility of the Spanish Data Protection Agency to supervise the application of this organic law and Regulation (EU) 2016/679 and, in particular, to exercise the functions established in Article 57 and the powers provided for in Article 58 of the same regulation, in this organic law and its implementing provisions.

III

Record of Processing Activities

Article 30 of the GDPR, concerning the record of processing activities, states:

"1. Each controller and, where applicable, their representative, shall maintain a record of processing activities carried out under their responsibility. This record shall contain all the information indicated below:

- a) the name and contact details of the controller and, where applicable, the joint controller, the representative of the controller, and the data protection officer;
- b) the purposes of the processing;
- c) a description of the categories of data subjects and the categories of personal data;
- d) the categories of recipients to whom the personal data have been or will be disclosed, including

recipients in third countries or international organizations;

e) where applicable, transfers of personal data to a third country or an international organization, including the identification of that third country or international organization and, in the case of transfers referred to in Article 49, paragraph 1, second sentence, the documentation of adequate safeguards;

f) where possible, the envisaged time limits for erasure of the different categories of data;

g) where possible, a general description of the technical and organizational measures referred to in Article 32, paragraph 1."

IV

Data Protection Impact Assessment

Article 35 of the GDPR establishes the obligation to carry out a Data Protection Impact Assessment (DPIA), stating:

"1. When a type of processing is likely to result in a high risk to the rights and freedoms of natural persons, in particular if it uses new technologies, by its nature, scope, context, or purposes, the controller shall, prior to the processing, carry out an assessment of the impact of the processing operations on the protection of personal data. A single assessment may address a set of similar processing operations that present similar high risks.

2. The controller shall seek the advice of the data protection officer, if appointed, when carrying out the data protection impact assessment.

3. The data protection impact assessment referred to in paragraph 1 shall be required in particular in the case of:

a) systematic and extensive evaluation of personal aspects relating to natural persons which is based on automated processing, including profiling, and on which decisions are based that produce legal effects concerning the natural persons or similarly significantly affect them;

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b) large-scale processing of special categories of data referred to in Article 9, paragraph 1, or of personal data relating to criminal convictions and offenses referred to in Article 10, or

c) large-scale systematic observation of a publicly accessible area.

4. The supervisory authority shall establish and publish a list of the types of processing operations that require a data protection impact assessment in accordance with paragraph 1. The supervisory authority shall communicate these lists to the Committee referred to in Article 68.

5. The supervisory authority may also establish and publish a list of the types of processing that do not require data protection impact assessments. The supervisory authority shall communicate these lists to the Committee.

6. Before adopting the lists referred to in paragraphs 4 and 5, the competent supervisory authority shall apply the consistency mechanism provided for in Article 63 if those lists include processing activities related to the offering of goods or services to data subjects or the monitoring of their behavior in several Member States, or processing activities that may substantially affect the free movement of personal data within the Union.

7. The assessment shall include at least:

a) a systematic description of the envisaged processing operations and the purposes of the processing, including, where appropriate, the legitimate interest pursued by the data controller;

b) an evaluation of the necessity and proportionality of the processing operations in relation to their purpose;

c) an assessment of the risks to the rights and freedoms of data subjects referred to in paragraph 1, and

d) the measures envisaged to address the risks, including safeguards, security measures, and mechanisms that ensure the protection of personal data, and to demonstrate compliance with this Regulation, taking into account the rights and legitimate interests of the data subjects and other

affected persons.

8. Compliance with the approved codes of conduct referred to in Article 40 by the respective controllers or processors shall be duly taken into account when assessing the impact of the processing operations carried out by those controllers or processors, particularly for the purposes of the data protection impact assessment.

9. Where appropriate, the controller shall seek the opinion of the data subjects or their representatives regarding the envisaged processing, without prejudice to the protection of public or commercial interests or the security of the processing operations.

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10. When the processing based on Article 6(1)(c) or (e) has its legal basis in Union Law or in the Law of the Member State applicable to the data controller, such Law regulates the specific processing operation or set of operations in question, and an impact assessment regarding data protection has already been carried out as part of a general impact assessment in the context of the adoption of such legal basis, paragraphs 1 to 7 shall not apply unless Member States consider it necessary to carry out such assessment prior to the processing activities.

11. If necessary, the controller shall examine whether the processing is in compliance with the data protection impact assessment, at least when there is a change in the risk posed by the processing operations.”

V

Conclusion

As stated in the Report issued by the Data Protection Delegate for the Educational Centers of the Ministry of Education, Vocational Training and Employment of the Region of Murcia, dated June 28, 2023:

“The General Directorate of Attention to Diversity, Innovation, and Vocational Training did not provide, before the start of the procedure, the activity record of processing, which is mandatory when there is data processing, for which the Ministry of Education, Vocational Training and Employment could be charged with a violation of Article 30 of the GDPR, included within the typology framed in Article 83.4(a) of the GDPR. Violation classified as a serious offense according to Article 73(n) of the LOPDGDD.”

“It is noted that the mandatory DPIA was not provided before the start of the procedure when the processing involves the use of biometric data, for which the Ministry of Education, Vocational Training and Employment could be charged with a violation of Article 35 of the GDPR, included within the typology framed in Article 83.4(a) of the GDPR. Violation classified as a serious offense according to Article 73(t) of the LOPDGDD.”

“The processing of biometric data under Article 9.2(g) requires that it be provided for in a European or national law, and in the latter case, such law must, according to the cited constitutional doctrine and as provided in Article 9.2 of the LOPDGDD, have the rank of law. This law must also specify the essential public interest that justifies the restriction of the right to personal data protection and under what circumstances it may be limited, establishing the precise rules that make the imposition of such limitation and its consequences foreseeable for the data subject, without the generic invocation of a public interest being sufficient for these purposes.”

“(…) considering what has been raised in this case, it is deemed insufficient to allow the use of facial recognition techniques for the purpose of constructing the digital fingerprint of students, as it does not meet the previously mentioned requirements.”

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It is necessary for a regulation with the rank of law to be approved that specifically justifies to what extent and under what circumstances the identification of students through the use of biometrics would respond to an essential public interest.

Therefore, there is currently no legal norm, as indicated, that enables such processing of biometric data under Article 9.2.g) of the GDPR, since neither Article 2 nor Article 111 bis of Organic Law 2/2006, of May 3, on Education, cited, meet the requirements established legally and jurisprudentially. "(...) we consider that the possibility of obtaining free consent from students that would allow the use of facial recognition techniques for the processing of their biometric data for the use of the "My Digital Fingerprint" platform would require that they be offered the possibility of using said platform in a comparable situation where the processing of their facial recognition was not necessary, that is, by offering other alternatives that do not require the processing of their biometric data; otherwise, the consent could not be considered freely given.

It is therefore the responsibility of the Ministry of Education, Vocational Training, and Employment, by virtue of its competencies in the field of education and as the entity responsible for the intended processing, to determine whether in the implementation of the agreement, therefore, of the "My Digital Fingerprint" platform, equality between students who consent to the processing of their biometric data and those who do not is ensured. Only in this way could the consent legitimize such processing."

However, the investigative actions carried out have confirmed that the 2022-2023 school year has concluded and the project referred to in the agreement has not been executed, as the agreement was deemed extinguished without coming into effect.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, in accordance with the aforementioned, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO PROCEED TO FILE the present actions.

SECOND: TO NOTIFY this resolution to the MINISTRY OF EDUCATION.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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